TERMS AND CONDITIONS OF SALE

THESE TERMS AND CONDITIONS OF SALE (THESE "***TERMS***") APPLY TO ALL GOODS, PRODUCTS, AND MATERIALS ("***PRODUCTS***") SOLD BY MJB WOOD GROUP, LLC AND/OR ITS AFFILIATES ("***SELLER***"). BY PURCHASING ANY PRODUCTS FROM SELLER, BUYER HEREBY INDICATES THAT IT HAS READ, UNDERSTANDS, AND AGREES TO BE BOUND BE THESE TERMS.

1. Applicability.

(a) These Terms are the only terms that govern the sale of the Products by Seller to the purchaser ("***Buyer***") identified in the applicable order, quotation, confirmation, or invoice agreed to by Buyer and Seller (the "***Order***").

(b) The Order and these Terms (collectively, this "***Agreement***") comprise the entire agreement between the parties, and supersede all prior or contemporaneous understandings, agreements, negotiations, representations and warranties, and communications, both written and oral. To the extent of any conflict between an Order and these Terms, these Terms shall prevail. Further, these Terms prevail over any of Buyer's general terms and conditions of purchase regardless of whether or when Buyer has submitted its purchase order or such terms. Fulfillment of any order from Buyer does not constitute acceptance of any of Buyer's terms and conditions and does not serve to modify or amend these Terms.

(c) Notwithstanding anything herein to the contrary, if a written inventory management agreement or similar agreement is signed by both parties and is in existence covering the sale of the Products covered hereby, the terms and conditions of said inventory management agreement or similar agreement shall prevail to the extent they are inconsistent with these Terms.

(d) Changes to any Orders or Products requested by Buyer will be made only if agreed by Seller in writing. If any such approved changes, in Seller's reasonable judgment, increase Seller's costs, Seller may condition approval of any such change on agreement by Buyer to a price increase to recoup such cost plus a reasonable return.

2. Delivery.

(a) All delivery dates set forth in an Order are approximate, unless otherwise expressly set forth in the Order. Seller shall not be liable for any delays, loss, or damage in transit. In the event any deliveries are delayed due to Buyer's action or inaction, or at Buyer's request, Buyer will be responsible for any resulting increases in costs, including, without limitation, handling and storage charges. Unless otherwise expressly set forth in the Order, all costs of shipping and transportation shall be borne by Buyer.

(b) Unless otherwise expressly set forth in the Order, all sales of Products are FOB Seller's facility (the "**Delivery Point**") using Seller's standard methods for packaging and shipping such Products..

(c) Seller may, in its sole discretion, without liability or penalty, make partial shipments of Products to Buyer. Each shipment will constitute a separate sale, and Buyer shall pay for the units shipped whether such shipment is in whole or partial fulfillment of Buyer's Order.

3. Non-Delivery. Any liability of Seller for non-delivery of the Products shall be limited to replacing the Products within a reasonable time or adjusting the invoice respecting such Products to reflect the actual quantity delivered.

4. Title and Risk of Loss. Title and risk of loss shall pass to Buyer upon delivery of the Products at the Delivery Point, unless otherwise expressly set forth in the Order. As collateral security for the payment of the purchase price of the Products, Buyer hereby grants to Seller a lien on and security interest in and to all of the right, title, and interest of Buyer in, to, and under the Products, wherever located, and whether now existing or hereafter arising or acquired from time to time, and in all accessions thereto and replacements or modifications thereof, as well as all proceeds (including insurance proceeds) of the foregoing. The security interest granted under this provision constitutes a purchase money security interest under the Texas Uniform Commercial Code.

5. Amendment and Modification. These Terms may only be amended or modified in a writing which specifically states that it amends these Terms and is signed by an authorized representative of each party.

6. Inspection and Rejection of Nonconforming Products.

(a) Buyer shall inspect the Products within thirty (30) days following receipt ("***Inspection Period***"). Buyer will be deemed to have accepted the Products unless it notifies Seller in writing of any Nonconforming Products during the Inspection Period and furnishes such written evidence or other documentation as reasonably required by Seller. "***Nonconforming Products***" means only the following: (i) Product(s) shipped that is different than identified in the Order; or (ii) Product(s) with label or packaging that incorrectly identifies its contents.

(b) If Buyer timely notifies Seller of any Nonconforming Products, Seller shall, in its sole discretion, (i) replace such Nonconforming Products with conforming Products, or (ii) credit or refund the Price for such Nonconforming Products, together with any reasonable shipping and handling expenses incurred by Buyer in connection therewith. Buyer shall ship, at its expense and risk of loss, the Nonconforming Products to Seller's facility as designated in writing by Seller.

(c) Buyer acknowledges and agrees that the remedies set forth in Section 6(b) are Buyer's exclusive remedies for the delivery of Nonconforming Products. Except as provided under Section 6(b), all sales of Products to Buyer are made on a one-way basis and Buyer has no right to return Products purchased under this Agreement to Seller.

7. Price.

(a) Buyer shall purchase the Products from Seller at the price(s) (the "***Price(s)***") set forth in the Order. The prices stated in your purchase order and our sales order or other order acknowledgement are subject to adjustment in the event of any changes in duties, tariffs, or other government imposed fees.

(b) Unless otherwise expressly set forth in the Order, all Prices are exclusive of all sales, use, and excise taxes, and any other similar taxes, duties, and charges of any kind imposed by any governmental authority on any amounts payable by Buyer. Unless otherwise expressly set forth in the Order, Buyer shall be responsible for all such charges, costs, and taxes; provided, that, Buyer shall not be responsible for any taxes imposed on, or with respect to, Seller's income, revenues, gross receipts, personnel, or real or personal property or other assets.

8. Payment Terms.

(a) Unless otherwise expressly set forth in the Order, Buyer shall pay all invoiced amounts due to Seller within thirty (30) days from the date of Seller's invoice. Buyer shall make all payments in US dollars.

(b) Buyer shall pay interest on all late payments at the lesser of the rate of 1.5% per month or the highest rate permissible under applicable law, calculated daily and compounded monthly. Buyer shall reimburse Seller for all costs incurred in collecting any late payments, including, without limitation, attorneys' fees. In addition to all other remedies available under these Terms or at law (which Seller does not waive by the exercise of any rights hereunder), Seller shall be entitled to suspend the delivery of any Products if Buyer fails to pay any amounts when due hereunder and such failure continues for thirty (30) days following written notice thereof.

(c) Buyer shall not withhold payment of any amounts due and payable by reason of any set-off of any claim or dispute with Seller, whether relating to Seller's breach, bankruptcy, or otherwise.

(d) To the extent any Order relates to custom or special-ordered Products, Buyer acknowledges and agrees that such Orders are non-cancellable. Seller shall determine, in its good faith discretion, what constitutes a custom or special-ordered Product. Buyer acknowledges and agrees that such custom or special-ordered Products are constructed to Buyer's specifications and that, upon commencing performance of such Order, Seller will have expended time, labor, and materials for which Seller is entitled to compensation. Buyer further acknowledges and agrees that such Products are unique to Buyer and cannot be sold to third parties in mitigation of the compensation and other damages due to Seller in the event Buyer fails to make timely payment therefor to Seller. Accordingly, Buyer agrees that its obligation to pay for all such Products is absolute in all circumstances.

9. Limited Warranty.

(a) Subject to Section 9(c), Seller warrants to Buyer that for a period of thirty (30) days from the date of shipment of the Products ("***Warranty Period***"), that such Products will be free from material defects in material and workmanship.

(b) EXCEPT FOR THE WARRANTY SET FORTH IN SECTION 9(a), SELLER MAKES NO WARRANTY WHATSOEVER WITH RESPECT TO THE PRODUCTS, INCLUDING ANY (a) WARRANTY OF MERCHANTABILITY; (b) WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE; (c) WARRANTY OF TITLE; OR (d) WARRANTY AGAINST INFRINGEMENT OF INTELLECTUAL PROPERTY RIGHTS OF A THIRD PARTY; WHETHER EXPRESS OR IMPLIED BY LAW, COURSE OF DEALING, COURSE OF PERFORMANCE, USAGE OF TRADE OR OTHERWISE. WITHOUT LIMITING THE FOREGOING: (A) IF THE PRODUCTS ARE MADE ACCORDING TO BUYER'S SPECIFICATIONS, SELLER DOES NOT WARRANT ADEQUACY OF SUCH SPECIFICATIONS OR THAT THE PRODUCTS WILL PERFORM IN ACCORDANCE WITH SUCH SPECIFICATIONS; (B) SELLER DOES NOT WARRANT THAT THE PRODUCTS ARE IN COMPLIANCE WITH ANY LAW OR REGULATIONS; AND (C) IF THE PRODUCTS ARE MODULES OR ASSEMBLIES, SELLER DOES NOT WARRANT THE PERFORMANCE OF THE SYSTEM, DURABILITY OF THE SYSTEM, OR INTEGRATION INTO THE SYSTEM.

(c) Products manufactured by a third party ("***Third-Party Product***") may constitute, contain, be contained in, incorporated into, attached to, or packaged together with, the Products. Third-Party Products are not covered by the warranty in Section 9(a). For the avoidance of doubt, **SELLER MAKES NO REPRESENTATIONS OR WARRANTIES WITH RESPECT TO ANY THIRD-PARTY PRODUCT, INCLUDING ANY (a) WARRANTY OF MERCHANTABILITY; (b) WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE; (c) WARRANTY OF TITLE; OR (d) WARRANTY AGAINST INFRINGEMENT OF INTELLECTUAL PROPERTY RIGHTS OF A THIRD PARTY; WHETHER EXPRESS OR IMPLIED BY LAW, COURSE OF DEALING, COURSE OF PERFORMANCE, USAGE OF TRADE OR OTHERWISE.**

(d) Seller shall not be liable for a breach of the warranty set forth in Section 9(a) unless: (i) Buyer gives written notice of the defect, reasonably described, to Seller within thirty (30) days of the time when Buyer discovers or ought to have discovered the defect; (ii) Seller is given a reasonable opportunity after receiving the notice to examine such Products and Buyer (if requested to do so by Seller) returns such Products to Seller's place of business at Seller's cost for the examination to take place there; and (iii) Seller reasonably verifies Buyer's claim that the Products are defective.

(e) Seller shall not be liable for a breach of the warranty set forth in Section 9(a) if: (i) Buyer makes any further use of such Products after giving such notice; (ii) the defect arises because Buyer failed to follow Seller's oral or written instructions as to the storage, installation, commissioning, use or maintenance of the Products; or (iii) Buyer alters or repairs such Products without the prior written consent of Seller.

(f) Subject to Section 9(d) and Section 9(e) above, with respect to any such Products during the Warranty Period, Seller shall, in its sole discretion, either: (i) repair or replace such Products (or the defective part) or (ii) credit or refund the price of such Products at the pro rata contract rate provided that, if Seller so requests, Buyer shall, at Seller's expense, return such Products to Seller.

(g) THE REMEDIES SET FORTH IN SECTION 9(f) SHALL BE THE BUYER'S SOLE AND EXCLUSIVE REMEDY AND SELLER'S ENTIRE LIABILITY FOR ANY BREACH OF THE LIMITED WARRANTY SET FORTH IN SECTION 9(a).

10. Limitation of Liability.

(a) IN NO EVENT SHALL SELLER BE LIABLE TO BUYER OR ANY THIRD PARTY FOR ANY LOSS OF USE, REVENUE OR PROFIT OR LOSS OF DATA OR DIMINUTION IN VALUE, OR FOR ANY CONSEQUENTIAL, INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, OR PUNITIVE DAMAGES WHETHER ARISING OUT OF BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE) OR OTHERWISE, REGARDLESS OF WHETHER SUCH DAMAGES WERE FORESEEABLE AND WHETHER OR NOT SELLER HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, AND NOTWITHSTANDING THE FAILURE OF ANY AGREED OR OTHER REMEDY OF ITS ESSENTIAL PURPOSE.

(b) IN NO EVENT SHALL SELLER'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT, WHETHER ARISING OUT OF OR RELATED TO BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE) OR OTHERWISE, EXCEED THE TOTAL OF THE AMOUNTS PAID TO SELLER FOR THE PRODUCTS SOLD UNDER THESE TERMS AND THE ORDER.

(c) The limitation of liability set forth in Section 10(b) above shall not apply to (i) liability resulting from Seller's gross negligence or willful misconduct and (ii) death or bodily injury resulting from Seller's acts or omissions.

11. Insurance. Buyer shall, at its own expense, maintain and carry insurance in full force and effect which includes, but is not limited to, reasonable commercial general liability (including product liability) with financially sound and reputable insurers. Upon Seller's request, Buyer shall provide Seller with a certificate of insurance from Buyer's insurer evidencing the insurance coverage specified in these Terms. The certificate of insurance shall name Seller as an additional insured. Except where prohibited by law, Buyer shall require its insurer to waive all rights of subrogation against Seller's insurers and Seller.

12. Compliance with Law. Buyer shall comply with all applicable laws, regulations, and ordinances. Buyer shall maintain in effect all the licenses, permissions, authorizations, consents, and permits that it needs to carry out its obligations under this Agreement. Buyer shall comply with all export and import laws of all countries involved in the sale of the Products under this Agreement or any resale of the Products by Buyer. Buyer assumes all responsibility for shipments of Products requiring any government import clearance.

13. Termination.

(a) In addition to any remedies that may be provided under these Terms, Seller may terminate this Agreement (or any particular Order) with immediate effect upon written notice to Buyer, if Buyer: (i) does not take possession of the Product within seven (7) days of the due date; (ii) fails to pay any amount when due under this Agreement and such failure continues for thirty (30) days after Buyer's receipt of written notice of nonpayment; (iii) has not otherwise performed

or complied with any of these Terms, in whole or in part; or (iv) becomes insolvent, files a petition for bankruptcy or commences or has commenced against it proceedings relating to bankruptcy, receivership, reorganization or assignment for the benefit of creditors.

(b) Upon termination of this Agreement or any Order: (a) Seller shall be relieved of any further obligation to Buyer (including, without limitation, any obligation with respect to production, delivery, and supply of Products), (b) Buyer shall be liable to Seller for the immediate payment of any previously invoiced amounts, (c) Buyer shall purchase from Seller, and immediately pay Seller for, all raw materials, components, work in process, and finished Products acquired or produced by Seller in connection with this Agreement or such Order, and (d) Buyer shall immediately reimburse Seller for all other costs incurred in connection with producing, providing, or preparing to product or provide such Products, materials, or other work.

14. Intellectual Property. Seller shall have and retain all rights, title, and interest, including all intellectual property rights, in and to all Products and associated materials provided hereunder, including, without limitation, any tooling, patterns, designs, molds, equipment, drawings, specifications, and any other property, tangible or intangible, furnished or used by Seller in connection with the manufacture of the Products ("*Proprietary Materials*"). No Proprietary Materials created hereunder shall be deemed or considered "works made for hire" as that term is used in the US Copyright Act.

15. Waiver. No waiver by Seller of any of the provisions of this Agreement is effective unless explicitly set forth in writing and signed by Seller. No failure to exercise, or delay in exercising, any right, remedy, power, or privilege arising from this Agreement operates or may be construed, as a waiver thereof. No single or partial exercise of any right, remedy, power, or privilege hereunder precludes any other or further exercise thereof or the exercise of any other right, remedy, power, or privilege.

16. Confidential Information. All non-public, confidential or proprietary information of Seller, including but not limited to specifications, samples, patterns, designs, plans, drawings, documents, data, business operations, customer lists, pricing, discounts, or rebates, disclosed by Seller to Buyer, whether disclosed orally or disclosed or accessed in written, electronic or other form or media, and whether or not marked, designated or otherwise identified as "confidential" in connection with this Agreement is confidential, solely for the use of performing this Agreement and may not be disclosed or copied unless authorized in advance by Seller in writing. Upon Seller's request, Buyer shall promptly return all documents and other materials received from Seller. Seller shall be entitled to injunctive relief for any violation of this Section. This Section does not apply to information that is: (a) in the public domain; (b) known to Buyer at the time of disclosure; or (c) rightfully obtained by Buyer on a non-confidential basis from a third party.

17. California Proposition 65 Disclosure. Drilling, sawing, sanding, or machining wood products can expose you to wood dust, a substance known to the State of California to cause cancer. The Product can expose you to chemicals including methanol, which is known to the State of California to cause birth defects or other reproductive harm. Avoid inhaling dust generated from wood products or use a dust mask or other safeguards for personal protection. For more information, go to www.P65Warnings.ca.gov

18. Force Majeure. No party shall be liable or responsible to the other party, nor be deemed to have defaulted under or breached this Agreement, for any failure or delay in fulfilling or performing any term of this Agreement (except for any obligations of Buyer to make payments to Seller hereunder), when and to the extent such failure or delay is caused by or results from acts beyond the impacted party's ("***Impacted Party***") reasonable control, including, without limitation, the following force majeure events ("***Force Majeure Event(s)***"): (a) acts of God; (b) flood, fire, earthquake, pandemics, epidemics, or explosion; (c) war, invasion, hostilities (whether war is declared or not), terrorist threats or acts, riot or other civil unrest; (d) government order, law, or actions; (e) embargoes or blockades in effect on or after the date of this Agreement; (f) national or regional emergency; (g) strikes, labor stoppages or slowdowns, or other industrial disturbances; (h) shortage of adequate power or transportation facilities; (i) lack of or failure of or other inability to obtain necessary transportation, fuel, power, materials, machinery, equipment or facilities, or delays caused by other contractors, subcontractors or their subcontractors of any tier, or any materialmen or suppliers; or (j) other events beyond the reasonable control of the Impacted Party. The Impacted Party shall give notice within thirty (30) days of the Force Majeure Event to the other party, stating the period of time the occurrence is expected to continue. The Impacted Party shall use diligent efforts to end the failure or delay and ensure the effects of such Force Majeure Event are minimized. The Impacted Party shall resume the performance of its obligations as soon as reasonably practicable after the removal of the cause. In the event that the Impacted Party's failure or delay remains uncured for a period of one hundred and eighty (180) consecutive days following written notice given by it under this Section 17, the other party may thereafter terminate this Agreement upon thirty (30) days' written notice.

19. Assignment. Buyer shall not assign any of its rights or delegate any of its obligations under this Agreement without the prior written consent of Seller. Any purported assignment or delegation in violation of this Section is null and void. No assignment or delegation relieves Buyer of any of its obligations under this Agreement. For the avoidance of doubt, Seller may subcontract or delegate any of its duties or obligations hereunder without Buyer's prior written consent; provided, however, that Seller shall be responsible for ensuring such subcontractors comply with the terms hereof.

20. Relationship of the Parties. The relationship between the parties is that of independent contractors. Nothing contained in this Agreement shall be construed as creating any agency, partnership, joint venture, or other form of joint enterprise, employment, or fiduciary relationship between the parties, and neither party shall have authority to contract for or bind the other party in any manner whatsoever.

21. No Third-Party Beneficiaries. This Agreement is for the sole benefit of the parties hereto and their respective successors and permitted assigns and nothing herein, express or implied, is intended to or shall confer upon any other person or entity any legal or equitable right, benefit, or remedy of any nature whatsoever under or by reason of these Terms.

22. Governing Law. All matters arising out of or relating to this Agreement are governed by and construed in accordance with the internal laws of the State of Texas without giving effect to any choice or conflict of law provision or rule (whether of the State of Texas or any other jurisdiction) that would cause the application of the laws of any jurisdiction other than those of the State of Texas.

23. Submission to Jurisdiction. Any legal suit, action, or proceeding arising out of or relating to this Agreement shall be instituted in the federal courts of the United States of America or the courts of the State of Texas in each case located in the City of Dallas and County of Dallas, and each party irrevocably submits to the exclusive jurisdiction of such courts in any such suit, action, or proceeding.

24. Severability. If any term or provision of this Agreement is invalid, illegal, or unenforceable in any jurisdiction, such invalidity, illegality, or unenforceability shall not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any other jurisdiction.